

CALL FOR BIDS
Event Number: 0000004125
BID FOR: Nicollet Ave Planting and Maintenance

The City of Minneapolis is issuing this Call for Bids for prospective suppliers to provide all materials, labor, equipment and incidentals necessary for the Nicollet Ave Planting and Maintenance project for the Public Works department; all in accordance with the provided specifications, event line items and all documents requested herein.

Event Close Date and Time	04/29/2026 at 02:00 PM Local Time. No public bid openings are taking place at this time. Procurement will open the responses at the Event Close Date and Time and the results will be posted as soon as possible on the City of Minneapolis website .
For additional information or questions, contact the buyer. <u>All questions must be submitted in writing.</u>	Duane Hansen duane.hansen@minneapolismn.gov
Pre-bid Meeting:	No pre-bid meeting will be held
Questions due by:	4/20/2026
Addendum (if any) will be posted by:	4/22/2026
Bid Deposit required?	Yes, in the amount of 2% of the total proposed bid amount, payable to "City of Minneapolis, Finance Department"
Payment Bond and Performance Bond required?	Yes, in the amount of 100% of the total contract amount
Bid Published in Finance and Commerce on:	4/11/2026 and 4/18/2026
Small and Underutilized Business Program (SUBP) Goals	0% Minority Business Enterprise (MBE) 0% Women Business Enterprise (WBE)
Employment Goals	20% Female and 32% Minority
Prevailing Wage applies (Yes/No)?	Yes
Basis of Award:	A single contract will be awarded to the (overall) low, responsive, responsible bidder meeting all specifications.
Substantial Project Completion:	5/12/2027
Submit Event Responses electronically:	City of Minneapolis -- Procurement eSupplier Event #0000004125

A contractor responding to this solicitation document swears that they are in compliance with the minimum criteria in Minnesota Statutes, section 16C.285, subdivision 3, and shall upon request submit to the City a signed statement under oath by an owner or officer verifying compliance with each of the minimum criteria.

The City reserves the right to waive irregularities and clerical errors.

eSupplier Portal -- Electronic Bid Submission

All bids must be submitted electronically through the [eSupplier Portal](#). Bidding documents and required forms are located on the eSupplier Portal -- Contracting Opportunities -- Event Name -- View Bid Package. The City of Minneapolis is not responsible for information posted on any third-party websites or plan rooms.

If you are already a City Supplier you should have received an email containing your eSupplier User ID and Password. If you do not remember your password, click on the "Forgot Password" tile to enter your User ID and a new password will be emailed to you. If you are not already a city supplier, click on the eSupplier link above and then click on the "Bidder Registration" tile to register. If you need further assistance with eSupplier, please send an email to eprocurement@minneapolismn.gov.

Addenda

Bidder is responsible for the review and acknowledgement of any addenda prior to submitting a bid.

Bid Deposit

When a bid deposit is required, the bidder must attach a copy of the Bid Bond, certified check or cashier check with their bid submission. **If your Bid Deposit is in the form of a certified check or cashier check you must deliver the original check to the Procurement Office (505 Fourth Avenue South, Room 310, Minneapolis, MN 55415) within 3 business days from the Event close date.** Said bid deposit shall be retained by the City of Minneapolis or Board as liquidated damages and not a penalty, in the event the bid is selected by the City of Minneapolis or Board and the bidder fails to execute a contract, therefore, and upon request of the City of Minneapolis or Board, a performance bond and payment bond, as may be required by the City of Minneapolis subsequent to award of contract.

Minnesota Statute §574.01 requires every bond to be signed by the principal and the sureties. The statute also requires every bond to be acknowledged by the principal and sureties. The acknowledgements must be notarized. The City reserves the right to require bidders to correct noncompliant bid bonds.

By submitting a bid, bidder agrees that said liquidated damages shall cover only the damages sustained by the City of Minneapolis or Board, from additional administrative costs, expenses or re-advertising and re-bidding and other damages sustained by the City of Minneapolis or Board as a result of failure of successful bidder to execute a written contract, and a performance bond and payment bond when so required, but shall not cover, nor preclude the City of Minneapolis or Board from claiming damages on account of delay, price change, loss of other contracts, loss of income, inability of City of Minneapolis or Board to fulfill other contracts, loss of other benefits of this contract, or damages, direct or consequential arising out of breach of contract by the successful bidder.

Sales Tax

Effective January 1, 2014, State of Minnesota requires vendors to obtain an ST-3 exemption certificate to substantiate a full (State & Local) sales tax exemption on sales to Minnesota cities, counties, and townships. The City's ST-3 form can be found on the [Certificate of Tax Exemption](#) page of the City of Minneapolis website.

If a lump sum bid for materials and/or equipment includes labor and all incidentals, the bidder is responsible for all applicable sales tax on taxable items required in the performance of the bid and should be included in the total amount of the bid.

Visit the MN Department of Revenue website, [Minnesota Sales and Use Tax Business Guide](#), for tax updates for Local Governments -- Cities, Counties and Townships.

City of Minneapolis Terms and Conditions for Construction/Commodities Contracts over \$175,000

(Revised: May 9, 2025)

The General Conditions are terms and conditions that the City expects all of its Contractors to meet. By submitting a bid, the bidder agrees to be bound by these requirements.

1. City's Rights

The City reserves the right to reject any or all Bids, to accept part or all of Bids on the basis of considerations other than lowest cost, and to create a project of lesser or greater expense and reimbursement than described in the Call for Bid, or the respondent's reply based on the component prices submitted. The City also reserves the right to cancel the Contract without penalty, if circumstances arise which prevent the City from commencing or continuing the project or any phase of the project and at any time if it is determined that the City was fraudulently induced to enter into the contract. In such a situation, the City will issue a written notice to "stop work" and demand the Contractor mitigate any contract-related expenses.

2. Equal Opportunity and Non-Discrimination

The Contractor will comply with applicable provisions of applicable federal, state and city regulations, statutes and ordinances pertaining to the civil rights and non-discrimination in its application process for and hiring of employees, sub-contractors and suppliers. Among the city ordinances, state statutes and federal statutes to which the Contractor shall be subject to and comply with under the terms of this Contract include, without limitation: Minneapolis Code of Ordinances, Chapter 139; Minnesota Statutes, Section 181.59 and Chapter 363A; 42 U.S.C. Section 2000e, et. seq. (Title VII of the Civil Rights Act of 1964), 29 U.S.C. Sections 621-624 (the Age Discrimination Employment Act), 42 U.S.C. Sections 12101-12213 (Americans with Disabilities Act or ADA), 29 U.S.C. Section 206(d) (the Equal Pay Act), 8 U.S.C. Section 1324 (Immigration Reform and Control Act of 1986) and all regulations and policies and orders promulgated to enforce these laws. Successful bidders with cumulative contracts exceeding \$100,000 will be required to submit a written Affirmative Action Plan (AAP) to the Minneapolis Department of Civil Rights in accordance with Chapter 139.50(a) of the Minneapolis Code of Ordinances.

3. Insurance

Insurance secured by the Contractor shall be issued by insurance companies acceptable to the City and admitted in Minnesota. The insurance specified may be in a policy or policies of insurance, primary or excess. Such insurance shall be in force on the date of execution of the Contract and shall remain continuously

in force for the duration of the Contract.

Acceptance of the insurance by the City shall not relieve, limit or decrease the liability of the Contractor. Any policy deductibles or retention shall be the responsibility of the Contractor. The Contractor shall control any special or unusual hazards and be responsible for any damages that result from those hazards. The City does not represent that the insurance requirements are sufficient to protect the Contractor's interest or provide adequate coverage. The City of Minneapolis shall be named as an Additional Insured. Evidence of coverage is to be provided on a Certificate of Insurance ACORD Form. A thirty (30) day written notice is required if the policy is canceled, not renewed, or materially changed. The Contractor shall require any of its subcontractors, if sub-contracting is allowable under this Contract, to comply with these provisions.

The Contractor and its sub-contractors shall secure and maintain the following insurance:

- a) **Workers Compensation** insurance that meets the Minnesota statutory obligations with Coverage B- Employers Liability limits of at least \$100,000 each accident, \$500,000 disease - policy limit and \$100,000 disease each employee.
- b) **Commercial General Liability** insurance with limits of at least \$2,000,000 general aggregate, with coverage for products - completed operations, personal and advertising injury, fire damage and medical expense any one person. The policy shall be on an "occurrence" basis, shall include contractual liability coverage and the City shall be named an "Additional Insured". The coverage amount may be increased if the project amount is expected to exceed \$2,000,000 or involves potentially high-risk activity.
- c) **Commercial Automobile Liability** insurance covering all owned, non-owned and hired automobiles with limits of at least \$1,000,000 per accident and the City shall be named an "Additional Insured".
- d) **Builders Risk** insurance. Coverage will be written on an "All Risks" (Special Form policy form). The contractor is responsible for all of the deductible in the Builders Risk policy. The property covered shall cover the full insurable value of the improvements, betterments, and include consequential loss insurance. The City of Minneapolis will be named as a loss payee to protect the City's interests with respect to the repair or replacement of any damaged property or other amounts payable under the policy. A builder's risk insurance policy is written specifically for a project and the City of Minneapolis requires a complete copy of the policy. An Installation Floater policy (equipment) may be required as part of the builders' risk policy when equipment is being installed by a contractor.

4. Indemnity and Hold Harmless

The Contractor will defend, indemnify and hold harmless the City and its officers and employees from all liabilities, claims, damages, costs, judgments, lawsuits and expenses, including court costs and reasonable attorney's fees regardless of the Contractor's insurance coverage, arising directly from any negligent act or omission of the Contractor, its employees, agents, by any sub-contractor or sub-Contractor, and by any employees of the sub-contractors and sub-Contractors of the Contractor, in the performance of work and delivery of services provided by or through this Contract or by reason of the failure of the Contractor to perform, in any respect, any of its obligations under this Contract. If a Contractor is a self-insured agency of the State of Minnesota, the terms and conditions of Minnesota Statutes, section 3.732 et seq. shall apply with respect to liability bonding, insurance, and liability limits. The provisions of Minnesota Statutes, Chapter 466 shall apply to other political subdivisions of the State of Minnesota.

5. Subcontracting

The Contractor shall provide written notice to the City and obtain the City's authorization to sub-contract any work or services to be provided to the City pursuant to this Contract. The Contractor shall not subcontract any services or work under this Contract without prior written approval of the City Department Contract Manager designated herein. As required by Minnesota Statutes, Section 471.425, the Contractor shall pay all subcontractors for subcontractor's undisputed, completed work, within ten (10) days after the Contractor has received payment from the City.

6. Assignment or Transfer of Interest

The Contractor shall not assign any interest in the Contract, and shall not transfer any interest in the same either by assignment or novation without the prior written approval of the City which will not be withheld or delayed unreasonably.

7. General Compliance

The Contractor agrees to comply with all applicable Federal, State, and local laws and regulations affecting the Contract or governing funds provided under the Contract.

8. Performance Monitoring

The City will monitor the performance of the Contractor against goals and performance standards required herein. Substandard performance as determined by the City will constitute non-compliance with this Contract. If action to correct such substandard performance is not taken by the Contractor within a reasonable period of time to cure such substandard performance, after being notified by the City, Contract termination procedures will be initiated. All work

submitted by Contractor shall be subject to the approval and acceptance by the City Department Contract Manager designated herein. The City Department Contract Manager designated herein shall review each portion of the work when certified as complete and submitted by the Contractor and shall inform the Contractor of any apparent deficiencies, defects, or incomplete work, at any stage of the project.

9. Prior Uncured Defaults

Pursuant to City Code of Ordinances, Section 18.110, the City may not contract with persons or entities that have defaulted under a previous contract or agreement with the City and have failed to cure the default.

10. Independent Contractor

Nothing contained in this Contract is intended to, or shall be construed in any manner, as creating or establishing the relationship of employer/employee between the parties. The Contractor shall at all times remain an independent contractor with respect to the work and/or services to be performed under this Contract. Any and all employees of Contractor or other persons engaged in the performance of any work or services required by Contractor under this Contract shall be considered employees or sub- contractors of the Contractor only and not of the City; and any and all claims that might arise, including Worker's Compensation claims under the Worker's Compensation Act of the State of Minnesota or any other state, on behalf of said employees or other persons while so engaged in any of the work or services to be rendered or provided herein, shall be the sole obligation and responsibility of the Contractor.

11. Accounting Standards

The Contractor agrees to maintain the necessary source documentation and enforce sufficient internal controls as dictated by generally accepted accounting practices (GAAP) to properly account for expenses incurred under this Contract.

12. Retention of Records

The Contractor shall retain all records pertinent to expenditures incurred under this Contract in a legible form for a period of six years after the resolution of all audit findings. Records for non-expendable property acquired with funds under this Contract shall be retained for six years after final disposition of such property.

13. Data Practices

The Contractor agrees to comply with the Minnesota Government Data Practices Act (Minnesota Statutes, Chapter 13) and all other applicable state and federal laws relating to data privacy or confidentiality. The requirements of Minnesota Statutes, Section 13.05, subdivision 11 apply to companies or individuals who perform under a government contract. The Contractor and any

of the Contractor's sub-Contractors or sub-contractors retained to provide services under this Contract shall comply with the Act and be subject to penalties for non-compliance as though they were a "governmental entity." The Contractor must immediately report to the City any requests from third parties for information relating to this Contract. The City agrees to promptly respond to inquiries from the Contractor concerning data requests. The Contractor agrees to hold the City, its officers, and employees harmless from any claims resulting from the Contractor's unlawful disclosure or use of data protected under state and federal laws.

Data submitted by a business to a government entity in response to a request for bids as defined in Minnesota Statutes, Section 13.591 and Section 16C.02, Subdivision 11, are private or non-public until the bids are opened. Once the bids are opened, the name of the bidder and the dollar amount specified in the response are read and become public. All other data in a bidder's response to a bid are private or non-public data until completion of the selection process. For the purposes of this section, "completion of the selection process" means that the government entity has completed its evaluation and has ranked the responses.

After a government entity has completed the selection process, all remaining data submitted by all bidders are public except for "trade secret data" as defined and classified in Section 13.37. A statement by a bidder that submitted data are copyrighted or otherwise protected does not prevent public access to the data contained in the bid.

Bidders are hereby advised that their bid document may become available to the public once a successful bidder has been chosen.

14. Inspection of Records

Pursuant to Minnesota Statutes, Section 16C.05, all books, records, documents and accounting procedures and practices of the Contractor with respect to the matters covered by this Contract shall be made available to the City and the State of Minnesota, Office of the State Auditor, or their designees upon notice, at any time during normal business hours, as often as the City deems necessary, to audit, examine, and make excerpts or transcripts of all relevant data.

15. Living Wage Ordinance

The Contractor may be required to comply with the "[Minneapolis Living Wage and Responsible Public Spending Ordinance](#)," Chapter 38 of the City's Code of Ordinances (the "Ordinance"). Unless otherwise exempt from the ordinance as provided in Section 38.40(c), any City contract for services valued at \$100,000 or more or any City financial assistance or subsidy valued at \$100,000 or more will be subject to the Ordinance's requirement that the Contractor and its sub-contractors pay their employees a "living wage" as defined and provided for in

the Ordinance. If subject to this Ordinance, the Contractor may not subdivide or assign portions of this Contract, pay an employee through a third party, or treat an employee as a subcontractor or independent contractor to avoid payment of a "living wage" or to avoid compliance with Chapter 38 of the City's Code of Ordinances.

16. Prevailing Wage

Compliance with the [City of Minneapolis Prevailing Wage Ordinance](#), sections 24.200 through 24.265 of the Minneapolis Code of Ordinances, is required as a material term of this contract and all such provisions are expressly incorporated by reference herein.

That in the event it is found by the City that any laborer, mechanic or employee employed by the contractor or any subcontractor or independent contractor directly on the site of the work covered by the contract has been, or is being paid, a rate of wages and fringe benefits or their cash equivalent less than rates required by this article and by the contract, and if the violation remains uncured within thirty (30) days after written notice, then the department of civil rights may direct the finance officer to withhold contract payment or amounts owed to the contractor on the current contract or on other contracts between the city and contractor to the extent of underpayment of required wages and require the contractor to pay a fee equal to five (5) percent of the entire contract price to the city as liquidated damages, and may place the contractor on a suspended or debarment list and, by written notice to the contractor, terminate his/her right to proceed with the work or such part of the work as to which there has been a failure to pay said required wages and to prosecute the work to completion by contract or otherwise, and the contractor and his/her sureties shall be liable to the city for damages sustained thereby.

17. Small & Underutilized Business Program (SUBP) Requirements

Consultant must comply with the [Small & Underutilized Business Program \(SUBP\)](#), as detailed in Chapter 423 of the Minneapolis Code of Ordinances. The SUBP Ordinance applies to any contract for the provision of goods and services in excess of one hundred and seventy-five thousand dollars (\$175,000).

18. Resolution of Disputes and Governing Law

If the parties have a dispute arising out of his Contract or interpretation of the Contract, the Contract Manager and Contractor will meet and confer. If both parties agree, they may employ the services of a mediator and will share the costs equally. Neither party may initiate litigation against the other until there has been a good faith effort to resolve the matter. The laws of the State of Minnesota shall govern all interpretations of this Contract, and the appropriate venue and jurisdiction for any litigation which may arise hereunder will be in those courts located within the County of Hennepin, State of Minnesota, regardless of the

place of business, residence, or incorporation of the Contractor.

19. Conflict and Priority

If the contract was awarded by a Bid and a conflict is found between provisions in this Contract and the Contractor's Bid, the provisions in the following rank order shall take precedence: 1) Contract including Bid specifications 2) Bid.

20. Travel

If travel by the Contractor is allowable and approved for this Contract, then Contractor travel expenses shall be reimbursed in accordance with the City's [Consultant Travel Reimbursement Conditions](#).

21. Patents

The Contractor shall save the City harmless from any and all claims which may arise as the result of any infringement or alleged infringement of any patent, patents of process, methods or design pertaining to the equipment furnished.

22. Conflict of Interest/Code of Ethics

Pursuant to Section 15.250 of the City's Code of Ordinances, both the City and the Contractor are required to comply with the City's Code of Ethics. Chapter 15 of the Code of Ordinances requires City officials and the Contractor to avoid any situation that may give rise to a "conflict of interest." A "conflict of interest" will arise if Contractor represents any other party or other client whose interests are adverse to the interests of the City.

As it applies to the Contractor, the City's Code of Ethics will also apply to the Contractor in its role as an "interested person" since Contractor has a direct financial interest in this Agreement. The City's Code of Ethics prevents "interested persons" from giving certain gifts to employees and elected officials.

23. Termination, Default and Remedies

The City may cancel this Contract for any reason without cause upon thirty (30) days written notice. Both the City and the Contractor may terminate this Contract upon sixty

(60) day's written notice if either party fails to fulfill its obligations under the Contract in a proper and timely manner, or otherwise violates the terms of this Contract. The non- defaulting party shall have the right to terminate this Contract, if the default has not been cured after ten (10) days written notice or such other reasonable time period to cure the default, has been provided. If termination shall be without cause, the City shall pay Contractor all compensation earned to the date of termination. If the termination shall be for breach of this Contract by Contractor, the City shall pay Contractor all compensation earned prior to the date of termination minus any damages and costs incurred by the City as a result of the breach. If the Contract is canceled or

terminated, all finished or unfinished documents, data, studies, surveys, maps, models, photographs, reports or other materials prepared by the Contractor under this Contract shall, at the option of the City, become the property of the City, and the Contractor shall be entitled to receive just and equitable compensation for any satisfactory work completed on such documents or materials prior to the termination.

Notwithstanding the above, the Contractor shall not be relieved of liability to the City for damages sustained by the City as a result of any breach of this Contract by the Contractor. The City may, in such event, withhold payments due to the Contractor for the purpose of set-off until such time as the exact amount of damages due to the City is determined. The rights or remedies provided for herein shall not limit the City, in case of any default by the Contractor, from asserting any other right or remedy allowed by law, equity, or by statute. The Contractor has not waived any rights or defenses in seeking any amounts withheld by the City or any damages due the Contractor.

24. Ownership of Materials

All finished or unfinished documents, data, studies, surveys, maps, models, photographs, reports or other materials resulting from this Contract shall become the property of the City upon final approval of the final report or upon request by the City at any time before then. The City, at its own risk, may use, extend, or enlarge any document produced under this Contract without the consent, permission of, or further compensation to the Contractor.

25. Intellectual Property

The City and the Contractor do not anticipate that any of the Contractor's work will result in the creation of any intellectual property.

Each party acknowledges and agrees that each party is the sole and exclusive owner of all right, title, and interest in and to its services, products, software, source and object code, specifications, designs, techniques, concepts, improvements, discoveries and inventions including all intellectual property rights thereto, including without limitations any modifications, improvements, or derivative works thereof, created prior to, or independently, during the terms of this Contract. This Contract does not affect the ownership of each party's pre-existing, intellectual property. Each party further acknowledges that it acquires no rights under this Contract to the other party's pre-existing intellectual property, other than any limited right explicitly granted in this Contract.

26. Equal Benefits Ordinance

[Minneapolis Code of Ordinances, Section 18.180](#), relating to equal benefits for domestic partners, applies to each contractor and subcontractor with 21 or more employees that enters into a "contract", as defined by the ordinance that exceeds

\$175,000. The categories to which the ordinance applies are personal services; the sale or purchase of supplies, materials, equipment or the rental thereof; and the construction, alteration, repair or maintenance of personal property. The categories to which the ordinance does not apply include real property and development contracts.

Please be aware that if a "contract", as defined by the ordinance, initially does not exceed \$175,000, but is later modified so the Contract does exceed \$175,000, the ordinance will then apply to the Contract.

It is the Contractor's and subcontractor's responsibility to review and understand the requirements and applicability of this ordinance.

27. Responsible Contractor Requirement

The Contractor represents that it is a "responsible contractor." The term "responsible contractor" as used in this document means a contractor as defined in Minnesota Statutes, Section 16C.285 subdivision 3. Any prime contractor or subcontractor that does not meet the minimum criteria in Section 16C.285 subdivision 3 or fails to verify that it meets those criteria is not a responsible contractor and is not eligible to be awarded a construction contract for the scope of work described in the bid documents. A false statement under oath verifying compliance with any of the minimum criteria shall render the prime contractor or subcontractor that makes the false statement ineligible to be awarded a construction contract for the scope of work defined in the bid documents and may result in the termination of a contract awarded to a prime contractor or subcontractor that submits the false statement. A prime contractor shall submit to the City, upon request, copies of the signed verifications of compliance from all subcontractors of any tier pursuant to Minnesota Statutes, Section 16C.285, subdivision 3, clause (7).

28. Retainage by City

The City may reserve as retainage either an amount from each progress payment or an amount based upon the amount of the Contract equal to or less than five percent (5%) of the progress payment or amount of the Contract. The City may reduce the amount of the retainage if in the opinion of the City: (a) the Contractor has not defaulted in any material way in undertaking the Scope of Work under the Contract; and (b) the Contractor has complied with applicable Minnesota Statutes with respect to this and previous contracts awarded to the Contractor.

29. Environmentally Responsible Purchasing Policy

The City of Minneapolis has adopted an [Environmental Purchasing Policy \(EPP\)](#) that is incorporated into all bids.

30. Gifts

Minnesota Statute, Section 471.895 prohibits gifts from interested persons to local officials. Local Officials includes any individuals who purchase or advise or recommend on the purchase of goods and/or services.

31. Products containing PFAS

Amara's Law (Minnesota Statute, Section 116.943) took effect in Minnesota on January 1, 2025, and applies all products sold or distributed under the Contract. The law prohibits the sale or distribution of some products with intentionally added PFAS within Minnesota.

32. Miscellaneous Provisions

1. **Successors and Assigns** -- This Contract shall be binding upon and inure to the benefit of the successors and assigns of the City and of the Contractor.
2. **Severability** -- If any provision of this Contract is held invalid or unenforceable, such invalidity or unenforceability shall not affect any other provision, and this Contract shall be construed and enforced as if such invalid or unenforceable provision had not been included.
3. **No Partnership or Joint Venture** -- Neither the City nor the Contractor is an agent, partner, or joint venture of the other for any purpose or has any authority to bind the other.
4. **No Third-Party Beneficiaries** -- This Contract does not create any third party beneficiary rights in any individual or entity that is not a party to this Contract.
5. **Waiver** -- Failure to enforce any provision of this Contract does not affect the rights of the parties to enforce such provision in another circumstance. Neither does it affect the rights of the parties to enforce any other provision of this Contract at any time.
6. **Amendments** -- This Contract may only be modified or changed by written amendment signed by authorized representatives of the City and the Contractor.
7. **Counterparts and Electronic Signatures** -- This Contract may be executed in counterparts, each of which has the effect of an original. An electronic signature will be deemed an original signature.
8. **Entirety of Contract** -- This Contract and the Attachments/Exhibits thereto, constitute the entire and exclusive Contract of the parties.

For a copy of the latest Prevailing Wage Rates - visit the Federal Website:

<https://sam.gov/content/wage-determinations>

Use the Rates for State of Minnesota - Hennepin County

PREVAILING WAGE CERTIFICATE

Laborers and Mechanics shall be paid according to the Contracts for Public Works Ordinance, Minneapolis Code of Ordinances, Chapter 24, Section 24.200 through 24.260, as amended, and the minimum wage rates and fringe benefits paid to the various classes shall be as determined by the Secretary of Labor of the United States, for work in the City, subject to and upon compliance with all requirements provided in the Rules of the Office of the Secretary of Labor of the United States. Apprentices may be paid less than the predetermined wage rate for the work performed. Apprentices must participate in a registered apprenticeship program (See 29 CFR, Parts 5 and 29). In addition to the certificates and other evidences of compliance which are required under these specifications and under Minneapolis Code of Ordinances, Section 24.240, it shall be required that the person or company representative submitting a bid for this contract shall certify in writing that both she/he/it and their Subcontractors shall comply with the wage and labor standard provision of Minneapolis Code of Ordinances, Section 24.200 through 24.260 as amended. Failure to comply with this ordinance shall mean the City may, by written notice to the Contractor, terminate the Contractor's right to proceed with the work and the Contractor and his Sureties shall be liable to the City for any excess cost occasioned to the City for the completion of the work.

By submitting this bid, it is understood and agreed that if it is accepted, in whole or in part, by the City of Minneapolis or Board, as designated, that any work done by the Contractor or by the Contractor's agent or Subcontractor under a contract with the City of Minneapolis or Board as designated shall be done in conformity with provisions of Minneapolis Code of Ordinances, Chapter 24, Section 24.200 through 24.260, or, if applicable Park Board Code of Ordinances, Chapter 6, Section PB 6-1 through PB 6-5. Specifically, it is agreed that payment of wages to employees or agents of the Contractor or any Subcontractor shall be no less than the amounts set forth in the current U.S. Department of Labor, General Wage Decision for the State of Minnesota - Hennepin County.

BY SUBMITTING YOUR BID, YOU ARE AGREEING TO ALL OF THE ABOVE.

Revised February 2024